Syllabus

NOTE: Where it is feasible, a syllabus (headnote) will be released, as is being done in connection with this case, at the time the opinion is issued. The syllabus constitutes no part of the opinion of the Court but has been prepared by the Reporter of Decisions for the convenience of the reader.

# SUPREME COURT OF THE UNITED STATES

Syllabus

## GABRIEL3324600 v. UNITED STATES

CERTIORARI TO THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

No. 25–10. Argued January 19, 2026—Decided March 6, 2026

On December 2, 2025, the United States filed a criminal information packet in the District Court for the District of Columbia charging the Petitioner with murder. The District Court found probable cause and issued an arrest warrant the same day. The warrant was executed approximately four hours later, and the court provided Petitioner seventy-two hours to appear before the court. Petitioner did not appear within that period. On December 6, 2025, the Government moved for entry of default and default judgment. The District Court granted both motions and adjudicated Petitioner guilty. The court imposed a sentence of ninety-six hours of imprisonment followed by three months of supervised probation. Petitioner subsequently moved for a new trial, arguing that the court failed to comply with the notice requirements of the Criminal Procedure Act of 2025 and violated due process by entering judgment and imposing sentence in his absence. The District Court denied the motion, concluding that public postings, execution of the arrest warrant, and Petitioner's acknowledgment at arrest constituted constitutionally sufficient notice.

*Held*: The District Court erred by failing to satisfy public notice under Section 13 of the Criminal Procedure Act of 2025. But that error does not require vacatur of the conviction. Pp. 3–6.

(a) The Criminal Procedure Act of 2025 establishes a two-stage process governing criminal default. First, after two days following proper notification of a summons or arrest warrant, the prosecution may move to place a case into default if the defendant fails to appear. Second, the Act separately regulates entry of default judgment. After one day following notification of default, the prosecution may move for judgment by default. At all stages, defendant must be provided with notice through public channels or direct messages. Pp. 2–3

The Due Process Clause requires notice reasonably calculated under the circumstances to apprise a defendant of the pendency of proceedings and afford an opportunity to be heard. That standard does

Syllabus

not require proof of actual receipt, but it does require procedures reasonably designed to inform affected parties. See *Mullane* v. *Central Hanover Bank & Trust Co.*, 339 U. S. 306 (1950). At the same time, criminal adjudication contains critical stages at which a defendant's presence is required. Proceedings determining punishment—particularly those imposing supervision or restrictions on liberty—must occur with the defendant present or after a knowing waiver of appearance. Pp. 2–3.

(b) Public notice under Section 13 is sufficient only when entry of default and default judgment are posted in the primary public judicial channel accessible to participants in the main RxUSA Discord server (#judicial). Posting solely within the internal Judiciary server does not satisfy the Act. The District Court accordingly erred in concluding that its notice procedures complied with the Criminal Procedure Act. That statutory error does not require vacatur of the conviction. Due process does not require the government to accomplish the impossible. A rule permitting defendants to defeat adjudication by declining to engage with the jurisdiction's designated civic forum or by exiting the platform altogether would render enforcement contingent upon voluntary compliance. The Constitution does not compel that result. As written originally by the United States and cited by the District Court, "a defendant cannot manufacture a constitutional violation by refusing to participate and then invoking [his] absence" as cause." Pp. 4–6.

(c) The District Court further erred in imposing a term of supervised probation without the defendant's appearance or opportunity to be heard. Sentencing constitutes a critical stage of criminal proceedings. Because it operates as an ongoing restraint on liberty, due process requires that a defendant be present or knowingly waive presence before such a sentence may be imposed. See *Mempa* v. *Rhay*, 389 U. S. 128, 134–37 (1967); see also *Gagnon* v. *Scarpelli*, 411 U. S. 778, 781–82 (1973). A defendant cannot comply with conditions he has never been informed exist. The resulting supervision therefore lacked the procedural foundation required for the exercise of continuing penal authority. Pp. 6–7

Affirmed in part, vacated in part, and remanded.

SAICHARI, J., delivered the opinion of the Court, in which FEELINGS, J., joined as to all but Part IV, and in which INSLEE, C. J., joined as to Part IV. INSLEE, C. J. filed an opinion concurring in part and dissenting in part.

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# SUPREME COURT OF THE UNITED STATES

No. 25–10

## GABRIEL3324600, PETITIONER *v.* UNITED STATES

ON WRIT OF CERTIORARI TO THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

[March 6, 2026]

JUSTICE SAICHARI delivered the opinion of the Court.

We consider whether the District Court for the District of Columbia erred under the Criminal Procedure Act of 2025 and the Due Process Clause by entering a criminal default judgment without first providing Petitioner notice, and whether the District Court erred by imposing a sentence of probation without the defendant's appearance or opportunity to be heard.

I

On December 2, 2025, the United States filed a criminal information packet in the District Court for the District of Columbia charging the Petitioner with murder under FCC § 1601. The District Court found probable cause and issued an arrest warrant the same day. The warrant was executed approximately four hours later, and the court provided Petitioner seventy-two hours to appear before the court.

Petitioner did not appear within that period. On December 6, 2025, the Government moved for entry of default and default judgment. The District Court granted both motions and adjudicated Petitioner guilty. The court imposed a sentence of ninety-six hours of imprisonment followed by three months of supervised probation.

Petitioner subsequently moved for a new trial, arguing that the court failed to comply with the notice requirements of the Criminal Procedure Act of 2025 and violated due process by entering judgment and imposing sentence in his absence. The District Court denied the motion, concluding that public postings, execution of the arrest warrant, and Petitioner's acknowledgment at arrest constituted constitutionally sufficient notice.

Petitioner sought timely review in this Court.

## II

The Criminal Procedure Act of 2025 establishes a two-stage process governing criminal default. First, after two days following proper notification of a summons or arrest warrant, the prosecution may move to place a case into default if the defendant fails to appear. At that stage, the defendant must be informed of the default through public channels if unreachable or through direct message, with proof of service provided to the court. The case then remains in a posture awaiting the defendant's appearance.

Second, the Act separately regulates entry of default judgment. After one day following notification of default, the prosecution may move for judgment by default. The defendant must again be informed, either through public channels or through direct message—before the court may adjudicate guilt in accordance with applicable sentencing guidelines.

The statute therefore distinguishes between entry of default and entry of judgment. Default marks the defendant's failure to appear; judgment authorizes adjudication of guilt only after an additional act of notice and passage of time.

Independent of statute, the Due Process Clause requires notice reasonably calculated under the circumstances to apprise a defendant of the pendency of proceedings and afford an opportunity to be heard. That standard does not require proof of actual receipt, but it does require

procedures reasonably designed to inform affected parties. See *Mullane* v. *Central Hanover Bank & Trust Co.*, 339 U.S. 306 (1950). At the same time, criminal adjudication contains critical stages at which a defendant's presence is required. Proceedings determining punishment—particularly those imposing supervision or restrictions on liberty—must occur with the defendant present or after a knowing waiver of appearance.

III

Petitioner contends that the District Court lacked authority to enter default judgment because the notice required by Section 13 of the Criminal Procedure Act of 2025 was never provided in a manner reasonably calculated to reach him. We agree that the procedures employed did not comply with the statute. We do not agree, however, that the defect invalidates the conviction.

Section 13 establishes a sequential process. After a defendant fails to appear, the prosecution may move for entry of default, and the defendant must then be informed of that default. Only after an additional period and a second act of notice may judgment by default be entered. The statute authorizes public notice where a defendant is unreachable and direct messaging where individualized contact is feasible.

The District Court relied on postings within internal judicial channels and on execution of the arrest warrant as evidence that notice requirements were satisfied. That reasoning cannot be sustained. Statutory notice is not measured by a defendant's subjective awareness of investigation or arrest, but by whether the court employed a method reasonably calculated to inform the defendant of the pendency and posture of the proceeding. *Id.*, at 314. An arrest alone does not constitute notice of subsequent judicial proceedings where the statute prescribes additional, sequential acts of notice.

In this jurisdiction, primary civic communications occur within a centralized public Discord server that functions as the ordinary public forum for official announcements. Communications posted in the designated public judicial channel are accessible to all participants in that forum and represent the ordinary location where governmental acts are announced. By contrast, channels limited to internal judicial participants are not reasonably calculated to inform non-participants that legal obligations have attached. Notice confined to such internal channels therefore fails to satisfy Section 13's requirement of public notice.

We therefore hold that public notice under Section 13 is sufficient only when entry of default and default judgment are posted in the primary public judicial channel accessible to participants in the main RxUSA Discord server (#judicial). Posting solely within the internal Judiciary server does not satisfy the Act. The District Court accordingly erred in concluding that its notice procedures complied with the Criminal Procedure Act.

That statutory error does not require vacatur of the conviction. Due process requires procedures reasonably calculated under the circumstances to apprise interested parties of proceedings; it does not guarantee actual participation. See *Mullane*, supra; see also *Jones* v. *Flowers*, 547 U. S. 220, 229 (2006). The dissent correctly observes that constitutional protections do not depend upon membership in any particular platform. See *post*, at __ (INSLEE, C. J., concurring in part and dissenting in part). All persons subject to this jurisdiction are entitled to the same procedural guarantees. The question, however, is not whether rights attach, but whether the method of notice employed was reasonable in the structural environment in which this jurisdiction operates.

This jurisdiction functions within a digital platform that imposes age-segmented communication restrictions and permits users to disconnect at will. In-game communication

does not provide a universally accessible or compulsory channel capable of reaching all members of the governed population. In that context, the centralized Discord server operates as the jurisdiction's only practicable cross-demographic public forum for official communications. Recognizing that forum for purposes of notice does not condition constitutional rights upon participation; it reflects the practical reality that no alternative universal channel exists.

Due process does not require the government to accomplish the impossible. A rule permitting defendants to defeat adjudication by declining to engage with the jurisdiction's designated civic forum or by exiting the platform altogether would render enforcement contingent upon voluntary compliance. The Constitution does not compel that result. As written originally by the United States and cited by the District Court, "a defendant cannot manufacture a constitutional violation by refusing to participate and then invoking [his] absence" as cause."

Even assuming Petitioner lacked actual awareness of the proceedings, the record reflects that the jurisdiction employed its established public forum for civic notice and that Petitioner declined to participate in that forum until after judgment was entered. At the time of trial, and at the time of oral arguments, the Petitioner, was never in the main RxUSA Discord Server and only joined after default. How Section 13's private notice requirement could be satisfied with such absence, precludes me. Certainly not through the arrest of the Petitioner. An arrest cannot constitute simple notice. While Section 13's public notice clause was unsatisfied with proceedings posted in the Judiciary server, it is unreasonable that public notice could have even been satisfied with the Petitioner's absence in our ordinary public forum and existing in-game chat restrictions. The statutory defect identified above does not rise to a constitutional deprivation requiring vacatur.

We therefore hold that the District Court erred in its method of notice under the Criminal Procedure Act of 2025, but that the error was non-prejudicial and does not invalidate the entry of default judgment.

## IV

The remaining question concerns the District Court's imposition of a term of supervised probation without the defendant's appearance or opportunity to be heard.

Unlike entry of default judgment, sentencing constitutes a critical stage of criminal proceedings. The imposition of probation is not merely ministerial. It subjects the defendant to continuing court supervision, affirmative obligations, and the possibility of additional punishment upon violation. Because it operates as an ongoing restraint on liberty, due process requires that a defendant be present or knowingly waive presence before such a sentence may be imposed. See *Mempa* v. *Rhay*, 389 U. S. 128, 134–37 (1967); see also *Gagnon* v. *Scarpelli*, 411 U. S. 778, 781–82 (1973).

Here, the District Court imposed a term of supervised probation without securing Petitioner's appearance, waiver, or confirmation that he was aware judgment had been entered. A defendant cannot comply with conditions he has never been informed exist. The resulting supervision therefore lacked the procedural foundation required for the exercise of continuing penal authority.

The custodial portion of the sentence presents a different question. Petitioner's ninety-six-hour term of imprisonment has already been served. Completed confinement does not constitute an ongoing deprivation capable of prospective correction, and vacatur would provide no meaningful relief. The constitutional defect lies not in the adjudication of guilt nor in the already executed custody, but in the imposition of continuing supervision without notice or participation.

Accordingly, the term of supervised probation must be vacated.

V

The District Court erred in its method of notice under the Criminal Procedure Act of 2025 but properly exercised authority to enter default judgment. The conviction is therefore affirmed.

The District Court further erred in imposing a term of supervised probation without the defendant's appearance or opportunity to be heard. That portion of the sentence is vacated, and the case is remanded for resentencing consistent with this opinion. The completed custodial sentence remains undisturbed.

The judgment of the District Court is affirmed in part, vacated in part, and remanded.

*It is so ordered.*

# SUPREME COURT OF THE UNITED STATES

No. 25–10

GABRIEL3324600, PETITIONER *v.* UNITED STATES

ON WRIT OF CERTIORARI TO THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

[March 6, 2026]

CHIEF JUSTICE INSLEE concurring in part and dissenting in part.

After a police officer executes an arrest warrant and submits a warrant return to the judge, a two-day timer starts. See Criminal Procedure Act of 2025, §13(a). The judge waits for the accused defendant—who was just arrested—to join the Judiciary Discord server, appear before him, and defend against a criminal case. If after those two days the defendant does not do all those things, his default is entered. That essentially means the prosecution can request for immediate judgment, provided that the whole host of default procedures are followed under the Criminal Procedure Act of 2025 (CRA). In this case, we are asked whether the District Court complied with the CRA and the Due Process Clause of the Fourteenth Amendment.

But there is an antecedent question that requires our attention first before considering the question presented. In this case (and in most other criminal cases), the record shows no evidence of the arrest other than the warrant return form. Since there is no evidence to suggest otherwise, we should assume that the police officer simply arrested the defendant and nothing else. The question, in my view, therefore turns to whether simply arresting the defendant is adequate and sufficient notice of charges and proceedings against him. Or said more specifically, whether simply arresting a defendant means that he automatically

knows that he must join the Judiciary Discord server, appear before a judge, and defend against a criminal case. The answer to that question is no.

The Due Process Clause of the Fourteenth Amendment requires just that: due process. "An elementary and fundamental requirement of due process," we have explained, "is notice." *Mullane* v. *Central Hanover Bank & Trust Co.*, 339 U. S. 306, 314 (1950). That notice must be "reasonably calculated, under all the circumstances" to inform parties of active proceedings and "present their objections." *Id.* Procedural due process requires adequate notice because "[t]he fundamental requisite of due process . . . is the opportunity to be heard." *Id.*, (citation omitted). And that "right . . . has little reality or worth unless one is informed." *Id.* A person cannot reap the full benefits and protections of the Due Process Clause if he does not have notice. Or simply put, the Due Process Clause cannot be put into full effect if there is no adequate notice.

Based on the record in this case, absolutely no notice was afforded to the defendant. The only available evidence of the arrest in the record is the warrant return, and nothing else. No video, no picture, not even an affidavit recounting the arrest. The warrant return simply says "Yes" under the section asking if there is evidence of the arrest. The District Court, as it routinely (and unfortunately) does in criminal cases, skipped over this and started the default timer. For all we know, based on the record, the police officer could have simply arrested the defendant and nothing more. Perhaps the police officer did not even mutter anything about pending criminal proceedings against him. Surely this does not qualify as adequate notice under the Due Process Clause. As just explained, due process notice must be reasonably calculated to allow defendants to be informed and take action. It is crystal clear that the notice here was not adequate or sufficient. Because—again based on the record—there was no single piece of notice provided to the defendant to begin with. The defendant was not told

anything about a pending criminal case, nor which Discord server to join or what to do. With no notice about where to go, what to do, or what is happening, that is a due process violation plain and simple. So I must ask again: Does simply arresting a defendant mean that he automatically knows that he must join the Judiciary Discord server, appear before a judge, and defend against a criminal case? The answer is still no.

The defendant presses this argument too. See Brief for Petitioner 11. The defendant argues that "in-game arrest[s]" do not provide "actual-knowledge of criminal proceedings." *Id.*, (internal quotation marks omitted). Simply and only arresting a defendant will not automatically make him realize that he must join the Judiciary Discord server, which is accessible at https://discord.gg/kyQxMXWDBZ (which is accessible through the community's main Discord server at https://discord.gg/rxusa). Much less does only an arrest make a defendant realize that separate criminal proceedings are pending, and that he must defend against them. If only we lived in a world where simply arresting a defendant generates the synaptic connections in his brain to know that he must defend against a separate criminal case; that he must join a random Discord server and go talk to a judge he has probably never seen before. But until that world becomes reality, there must be more notice than just an arrest to satisfy due process.

The District Court took for granted that the defendant was even in receipt of the warrant, that the warrant was served, and that the warrant was executed. As previously explained, there is no evidence that the arrest and warrant execution took place. That alone should end this case. But if not, there is more. No evidence shows that the defendant was told he must appear in court. The defendant recounts being told nothing about needing to appear in court, as they say in their Motion for New Trial. Contrary to that, the Government says the defendant told the Marshals Service

(supposedly upon arrest), "Alright, let's get this over with." The Government suggested, based on this sketchy and unsupported statement alone, that the defendant had concrete knowledge of his pending criminal case. And the District Court agreed with the Government on that unsubstantiated claim. All that, despite the defendant offering a different perspective, and no evidence showing anything of what anyone says. As a result, a new trial was denied and the defendant was convicted. The District Court erred.

This Court, like the District Court, takes for granted another thing. The Court concludes, perhaps as dicta, that our main discord server is our "ordinary public forum for official announcements." *Ante*, at 4. But as a result, the Court essentially says that to be afforded constitutional and statutory rights (like the ones at issue here), a person must be in our main Discord server. This is baseless. Nothing in our Constitution, statutes, or case law requires a person to join the arbitrary platform of Discord to reap the full benefit of the Constitution and our laws. Absolutely nothing in the law says this.

Separately, the Court holds in Part IV of its opinion that the District Court erred by imposing a term of supervised probation. Because the Court vacates in part, I concur in that part.

*

This case asks us to decide whether the District Court complied with the CRA and the Due Process Clause. At least with respect to due process, it did not. Notice is not a new or fancy thing. It is part of fundamentally fair adjudication and criminal justice. What is unusual here is that absolutely no notice was offered. Yet, the District Court convicted the defendant without considering this constitutional requisite. That is a due process violation.

Respectfully, I would vacate the judgment in full and remand.